General Assembly

Raised Bill No. 6850

January Session, 2025

LCO No. **3960**

Referred to Committee on GOVERNMENT ADMINISTRATION AND ELECTIONS

Introduced by:
(GAE)

AN ACT CONCERNING REVISIONS TO THE FREEDOM OF INFORMATION ACT CONCERNING THE NONDISCLOSURE OF THE ADDRESSES OF CERTAIN PUBLIC AGENCY EMPLOYEES.

Be it enacted by the Senate and House of Representatives in General Assembly convened:

Section 1. Section 1-217 of the general statutes is repealed and the following is substituted in lieu thereof (*Effective October 1, 2025*):

(a) No public agency may disclose, under the Freedom of Information Act, from its personnel, medical or similar files, the residential address of any of the following persons: **[**employed by such public agency:**]**

(1) A federal court judge, federal court magistrate, judge of the Superior Court, Appellate Court or Supreme Court of the state, or family support magistrate;

(2) A sworn member of a municipal police department, a sworn member of the Division of State Police within the Department of Emergency Services and Public Protection or a sworn law enforcement officer within the Department of Energy and Environmental Protection;

(3) An employee of the Department of Correction;

(4) An attorney-at-law who represents or has represented the state in a criminal prosecution;

(5) An attorney-at-law who is or has been employed by the Division of Public Defender Services or a social worker who is employed by the Division of Public Defender Services;

(6) An inspector employed by the Division of Criminal Justice;

(7) A firefighter;

(8) An employee of the Department of Children and Families;

(9) A member or employee of the Board of Pardons and Paroles;

(10) An employee of the judicial branch;

(11) An employee of the Department of Mental Health and Addiction Services who provides direct care to patients;

(12) A member or employee of the Commission on Human Rights and Opportunities; **[**or**]**

(13) A state marshal appointed by the State Marshal Commission pursuant to section 6-38b; or

(14) Any other employee of a public agency, except when residency is a condition or term of such person's employment.

(b) The business address of any person described in this section, and the address of each town hall, city hall or other municipal building in which the office of the registrars of voters of a municipality is located, shall be subject to disclosure under section 1-210. The provisions of this section shall not apply to Department of Motor Vehicles records described in section 14-10.

(c) (1) Except as provided in subsections (a), (b) and (e) of this section, no public agency may disclose the residential address of any person listed in subsection (a) of this section from any record described in subdivision (2) of this subsection that is requested in accordance with the provisions of said subdivision, regardless of whether such person is an employee of the public agency, provided such person has (A) submitted a written request for the nondisclosure of the person's residential address to the public agency, and (B) furnished his or her business address to the public agency.

(2) Any public agency that receives a request for a record subject to disclosure under this chapter where such request (A) specifically names a person who has requested that his or her address be kept confidential under subdivision (1) of this subsection, shall make a copy of the record requested to be disclosed and shall redact the copy to remove such person's residential address prior to disclosing such record, (B) is for an existing list that is derived from a readily accessible electronic database, shall make a reasonable effort to redact the residential address of any person who has requested that his or her address be kept confidential under subdivision (1) of this subsection prior to the release of such list, or (C) is for any list that the public agency voluntarily creates in response to a request for disclosure, shall make a reasonable effort to redact the residential address of any person who has requested that his or her address be kept confidential under subdivision (1) of this subsection prior to the release of such list.

(3) Except as provided in subsection (a) of this section, an agency shall not be prohibited from disclosing the residential address of any person listed in subsection (a) of this section from any record other than the records described in subparagraphs (A) to (C), inclusive, of subdivision (2) of this subsection.

(d) (1) Except as provided in subsections (a) and (e) of this section and subject to the provisions of subdivisions (2) and (3) of this subsection, no public agency of a municipality may disclose, under the Freedom of

Information Act, from a public record, including any record described in subdivision (2) of subsection (c) of this section, the residential address of any person who is a municipal clerk, registrar of voters, deputy registrar of voters, election official described in section 9-258, primary official described in section 9-436 or audit official described in section 9-320f, regardless of whether such person is an employee of the public agency, provided such person has (A) submitted to the municipality a written request for the nondisclosure of the person's residential address, and (B) furnished to the municipality (i) his or her business address, or (ii) if such person does not have a business address, the address of the town hall, city hall or other municipal building in which the office of the registrars of voters of such municipality is located.

(2) (A) If a person submits a written request described in subdivision (1) of this subsection prior to the ninetieth day preceding an election, the prohibition in said subdivision against disclosing such person's residential address shall take effect on the ninetieth day preceding such election and shall expire on the ninetieth day following such election.

(B) If a person submits a written request described in subdivision (1) of this subsection on or after the ninetieth day preceding an election, the prohibition in said subdivision against disclosing such person's residential address shall take effect upon such submission and shall expire on the ninetieth day following such election.

(3) The provisions of this subsection shall not be construed to prohibit the disclosure of the residential address of any person described in subdivision (1) of this subsection in the case where such residential address appears on a public record by virtue of such person holding any elective or appointive state or municipal office other than municipal clerk, registrar of voters or deputy registrar of voters.

(e) The provisions of this section shall not be construed to prohibit the disclosure without redaction of any document, as defined in section 7-35bb, any list prepared under title 9, or any list published under

section 12-55.

(f) No public agency or public official or employee of a public agency shall be penalized for violating a provision of this section, unless such violation is wilful and knowing. Any complaint of such a violation shall be made to the Freedom of Information Commission. Upon receipt of such a complaint, the commission shall serve upon the public agency, official or employee, as the case may be, by certified or registered mail, a copy of the complaint. The commission shall provide the public agency, official or employee with an opportunity to be heard at a hearing conducted in accordance with the provisions of chapter 54, unless the commission, upon motion of the public agency, official or employee or upon motion of the commission, dismisses the complaint without a hearing if it finds, after examining the complaint and construing all allegations most favorably to the complainant, that the public agency, official or employee has not wilfully and knowingly violated a provision of this section. If the commission finds that the public agency, official or employee wilfully and knowingly violated a provision of this section, the commission may impose against such public agency, official or employee a civil penalty of not less than twenty dollars nor more than one thousand dollars. Nothing in this section shall be construed to allow a private right of action against a public agency, public official or employee of a public agency.

This act shall take effect as follows and shall amend the following sections:		
Section 1	*October 1, 2025*	1-217

Statement of Purpose:

To amend the prohibition against disclosing the residential address of certain persons contained in personnel, medical or similar files by deleting reference to the employing public agency and expanding the prohibition to other public agency employees for which residency is not a requirement for employment.

[Proposed deletions are enclosed in brackets. Proposed additions are indicated by underline, except that when the entire text of a bill or resolution or a section of a bill or resolution is new, it is not underlined.]